



CHAPTER xl.

An Act to authorise the Aberdare and Aberaman Consumers Gas Company to raise additional capital to construct new works and for other purposes.

A.D. 1916.

[3rd August 1916.]

WHEREAS by the Aberdare and Aberaman Gas Act 1869 (hereinafter called "the Act of 1869") the Aberdare and Aberaman Consumers Gas Company (hereinafter called "the Company") were incorporated and empowered to construct and maintain gasworks and to supply gas within the limits defined in that Act:

And whereas further powers were conferred upon the Company by the Aberdare and Aberaman Gas Act 1874 (hereinafter called "the Act of 1874"):

And whereas by the Act of 1869 the original capital of the Company was fixed at thirty thousand pounds divided into three thousand shares of ten pounds each entitled to a dividend at the rate of ten pounds per centum per annum:

And whereas by the Act of 1874 the Company were authorised to raise additional capital to an amount not exceeding in the whole ten thousand pounds by the creation and issue of new ordinary shares or stock entitled to a dividend at the rate of seven pounds per centum per annum or new preference shares or stock entitled to a dividend at the rate of six pounds per centum per annum:

And whereas the whole of the original capital has been issued and paid up and the Company have in respect of the powers granted by the Act of 1874 created and issued preference shares entitled to a dividend at the rate of five pounds per centum per annum for the whole of the additional capital by the said Act authorised and such shares are paid up:

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And whereas by the Act of 1869 and the Act of 1874 the Company were authorised to raise on mortgage or by the creation and issue of debenture stock in respect of their paid-up capital the total sum of ten thousand pounds and they have borrowed on mortgage and now owe the sum of seven thousand five hundred pounds :

And whereas the demand for gas in the Company's limits of supply has increased and is increasing and it is expedient that the Company be authorised to raise additional capital and to construct additional works as hereinafter provided in order to enable them to meet such increased demand :

And whereas it is expedient that such further powers should be conferred upon the Company and such further provisions enacted as are contained in this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

Short title.

1. This Act may be cited as the Aberdare and Aberaman Gas Act 1916.

Incorporation of general Acts.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with this Act (namely) :—

The Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871 Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section ;

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;
The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing A.D. 1916.
the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The general meetings of the Company;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies' Clauses Act 1863 as amended by subsequent Acts; and

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement).

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—Interpretation.

The expression "the Company" means the Aberdare and Aberaman Consumers Gas Company;

The expression "the recited Acts" means the Aberdare and Aberaman Gas Act 1869 and the Aberdare and Aberaman Gas Act 1874;

The expression "the Act of 1869" means the Aberdare and Aberaman Gas Act 1869;

The expression "the Act of 1874" means the Aberdare and Aberaman Gas Act 1874;

The expression "the limits of supply" means and includes the limits within which the Company are by the recited Acts authorised to supply gas;

The expression "British thermal units" means British thermal units gross per cubic foot of gas.

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CAPITAL.

Additional
capital.

4. The Company may raise additional capital not exceeding in the whole thirty-five thousand pounds by the creation and issue of ordinary shares or stock or preference shares or stock or wholly or partially by one or more of those modes respectively Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of thirty-five thousand pounds Provided also that the Company shall not raise by the issue of preference shares or stock a greater amount of such additional capital than nineteen thousand pounds.

Privileges
&c. of holders
of additional
capital.

5. Subject as hereinafter provided the additional capital raised by the Company under this Act shall be part of the general capital of the Company and save as otherwise provided in respect of such capital by the provisions of this Act the holders of shares or stock in such additional capital shall be entitled to the like rights of voting and any other rights qualifications and privileges in proportion to the amount of their shares or stock from time to time paid up and be subject to the like provisions and liabilities as the other holders of shares or stock of the same class or description.

Additional
capital to
be sold by
auction or
tender.

6.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of the urban district council of Aberdare and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be

received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be : A.D. 1916.

- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock.

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Issue of
redeemable
preference
shares or
stock or
debenture
stock.

7.—(1) The Company may create and issue all or any of the preference shares or stock or debenture stock authorised to be created and issued under the powers of this Act so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed at a special meeting convened for the purpose.

(2) If it is so provided in the resolution the Company may—

(a) Call in and pay off the shares or stock or any part thereof at any time before the fixed date of redemption; and

(b) Redeem the shares or stock or any part thereof either by paying off the shares or stock or by issuing to any shareholder or stockholder subject to his consent other shares or stock in substitution therefor and may for the purpose of providing money for paying off the shares or stock or of providing substituted shares or stock create and issue new shares or stock (either redeemable or irredeemable) or re-issue shares or stock originally created and issued under this section. Provided that the creation and issue for the purpose of any particular class of shares or stock does not make the total nominal amount of such shares or stock exceed the amount of that class of shares or stock which the Company are for the time being authorised to create.

(3) The Company shall not redeem out of revenue any debenture stock or preference shares or stock created under this section.

DIVIDENDS.

Profits of
Company
limited.

8. The Company shall not in any year pay out of their profits any larger dividend on the additional capital to be raised under the powers of this Act than seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and six pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

Interim
dividend.

9. The directors of the Company may in any year declare and pay an interim half-yearly dividend out of the profits of the Company without the sanction or direction of a general meeting but no such half-yearly dividend shall exceed one half

of the amount of the authorised rate of dividend upon any shares or stock of the Company. A.D. 1916.

10. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in a newspaper published or circulating in the limits of supply and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Closing of transfer books previous to declaring interim dividend.

BORROWING POWERS AND FINANCIAL PROVISIONS.

11.—(1) The Company may at any time and from time to time borrow on mortgage of the undertaking in respect of the existing capital of the Company any sum or sums not exceeding (inclusive of any sums borrowed by them under the recited Acts) the sum of thirteen thousand three hundred and thirty-three pounds.

Power to borrow.

(2) The Company may (in addition to the moneys which they are authorised to borrow as aforesaid) from time to time subject to the provisions of this Act borrow on mortgage of the undertaking in respect of the additional capital by this Act authorised to be raised any sum or sums not exceeding in the whole one third part of the amount of such capital (including premiums) which at the time of borrowing has been raised under the powers of this Act but no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up.

12. Notwithstanding anything contained in the recited Acts the Company shall not exercise in respect of any money borrowed by them the powers of the Companies Clauses Consolidation Act 1845 with respect to the conversion of borrowed money into capital.

Company not to convert borrowed money into capital.

13. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 16 of the Act of 1874.

Debenture stock.

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Priority of mortgages and debenture stock over other debts.

14. All money raised or to be raised by the Company on mortgage or debenture stock under the provisions of this Act or the recited Acts shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by the Company after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

Priority of principal moneys secured by existing mortgages.

15. The principal moneys secured by all mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages have priority over the principal moneys secured by any mortgages granted by virtue of this Act.

For appointment of receiver.

16. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one tenth part of the whole amount for the time being owing by the Company on mortgage of the undertaking.

Receipt in case of persons not *sui juris*.

17. If any money is payable to a stockholder shareholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Application of moneys.

18. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of any shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

Application of excess of profits over authorised

19. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the

authorised rate on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year: A.D. 1916.

rates of
dividend.

Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay two years' dividend at the authorised rates.

20. Notwithstanding anything in this Act the Company shall not under the powers of this Act raise or borrow any money during the continuance of the war and twelve months thereafter unless the consent of the Treasury has been previously obtained. As to
exercise of
capital
powers of
Act.

TESTING OF GAS.

21. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing-place shall be a testing place which shall be provided and maintained by and at the expense of the urban district council of Aberdare within six months after the passing of this Act near the centre of the urban district of Aberdare in a position to be agreed upon between the Company and the urban district council of Aberdare or in case of difference to be determined by an engineer to be appointed by the Board of Trade. Testing-
place.

22. Within six months after the passing of this Act the urban district council of Aberdare shall provide and thereafter maintain at the prescribed testing-place apparatus for testing the calorific value of the gas supplied by the Company at such testing-place similar to the apparatus for the time being prescribed by the metropolitan gas referees for testing the calorific value of the gas supplied by the companies referred to in the London Gas Act 1905. Urban dis-
trict council
of Aberdare
to provide
apparatus
for testing
calorific
value.

23. The following provisions shall apply with respect to the testing for calorific value of the gas supplied by the Company:— Provisions
as to testing
for calorific
value.

- (1) Not more than one testing for calorific value shall be made on any one day (reckoned from midnight to midnight) except that in the event of the calorific value being on any testing at the prescribed testing-place ascertained to be below five hundred British thermal units the gas examiner shall forthwith give notice thereof to the Company and a second testing shall be made at the testing-place provided at the works of the Company at an interval of not less

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than one hour from the time of making the first testing at the prescribed testing-place and the average of the two testings shall be deemed to be the calorific value of the gas on that day :

- (2) The Company may if they think fit on each occasion of the testing of gas under the provisions of this section be represented by some officer who shall not interfere in the testing :
- (3) The gas examiner shall forthwith give notice to the Company at their office of any defect of calorific value ascertained by him on any testing of the gas :
- (4) Section 12 of the Gasworks Clauses Act 1871 and so much of Schedule A of that Act as relates to the apparatus and mode of testing illuminating power shall not apply to the Company and sections 28 to 33 both inclusive of the said Act in their application to the Company shall be construed as if calorific value were therein referred to instead of illuminating power.

Penalties for
deficient
calorific
value.

24. Where the calorific value on any day of the gas supplied by the Company is less than five hundred British thermal units the Company shall be liable to the following penalties in respect of such deficiency (that is to say) :—

Where the deficiency does not exceed fourteen British thermal units two pounds ;

Where the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds ;

For each complete twenty-eight British thermal units of defective value a sum not exceeding ten pounds :

Provided that the Company shall not be liable for more than one penalty in respect of a deficiency of calorific value of the gas supplied on any one day.

Pressure.

25.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing-places or at any

public lamp as and when he thinks fit test the pressure at which the gas is supplied The Company shall afford to the examiner all reasonable facilities for making the tests. A.D. 1916.

(3) The Company may if they think fit on each occasion of any such testing be represented by some officer but such officer shall not interfere in the testing.

(4) Section 33 (Prescribed pressure) of the Act of 1874 is hereby repealed.

26. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific value or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. Saving as to penalties.

27. The Company if and when required at any time within two years after the passing of this Act by any consumer of gas supplied by the Company shall supply to such consumer and fix free of charge a sufficient number of flat flame burners suitable in all respects for the consumption of gas of the calorific value prescribed by this Act in substitution for the burners (not being incandescent burners) in use at the commencement of this Act. Company to supply suitable burners gratis in exchange for certain burners in use.

Notice of the provisions of this section shall be given on each demand note of the Company during the period of two years hereinbefore mentioned.

LAND POWERS.

28. The Company may for the purposes of the undertaking purchase and take (by agreement but not otherwise) and may hold in addition to the other lands which they are by the Act of 1869 authorised to hold any lands and hereditaments not exceeding in the whole six acres which they may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands authorised to be so used by or under the recited Acts and this Act. Power to purchase lands by agreement.

29. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands (so far as such provisions are applicable) the Company may Power to sell and lease lands.

A.D. 1916. — sell or let on lease for such periods as they think fit or otherwise dispose of any lands or property for the time being belonging to them acquired under the powers of this Act and which may not at the time be required for the purposes of the undertaking or any easements or rights in or under any lands for the time being belonging to them and may retain and hold or sell and dispose of any interest in or reversion to any lands or property so let and any such sale disposal or lease may be for such consideration and subject to such reservations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

CONSTRUCTION OF GASWORKS.

Construction
and main-
tenance of
gasworks.

30.—(1) Subject to the provisions of this Act the Company may upon the lands described in the schedule to this Act—

(a) Erect maintain alter improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply ;

(b) Work up and convert the residual products arising directly or indirectly from the manufacture of gas by them.

(2) The Company may also purchase—

(a) The residual products arising from the manufacture of gas by other gas undertakers and therewith manufacture other products of the same kind as the Company are manufacturing from their own residual products Provided that the quantity of any residual product so purchased by the Company in any year shall not exceed one third of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them ;

(b) Purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid :

But the Company shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Company or purchased from other gas undertakings is merely subsidiary.

MISCELLANEOUS.

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31. Notwithstanding anything contained in any enactment to the contrary the Company shall not be obliged to give from any main a supply of gas for any purpose other than lighting or domestic use in any case where the capacity of such main is insufficient for such purpose or if and so long as any such supply would in the opinion of the Company interfere with the sufficiency of the gas required to be supplied by means of such main for lighting purposes.

Amending obligations as to supply of gas.

32.—(1) The directors of the Company may with the sanction of a majority of the shareholders present and voting at an extraordinary general meeting of the Company prepare put in force and from time to time modify or alter a scheme enabling the workmen servants and employees of the Company (hereinafter called "employees") or any class or classes of such employees as may be defined in such scheme to participate in the profits of the undertaking as part of the terms of remuneration for the services of any such employee.

Profit sharing.

(2) Any agreement as to service with any employee in pursuance of any such scheme may be entered into with any employee above the age of sixteen and shall be in writing and may be made on the part of the Company under the hands of any two directors of the Company or under the hand of the secretary of the Company or of any person from time to time appointed in that behalf by resolution of the board of directors of the Company.

33. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Company to any premises for which he has at the same time a separate supply of electricity or gas for power or other purposes the Company shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum Provided that in fixing the amount of such minimum charge the Company shall have regard to the probable maximum supply of gas which might at any time be required for such premises Provided also that in respect of any premises for which the whole supply of gas afforded by the Company is taken through a meter having a nominal capacity of less than ten lights the

Minimum charge for gas laid on to premises having a supply of electricity or power gas.

A.D. 1916. amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

Engines &c. though fixed to premises to remain property of Company.

34. Subject as hereinafter provided all engines fittings apparatus and appliances (in this section referred to as "fittings") let by the Company under any statutory powers on hire or under hire purchase agreements shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the owners thereof Provided also that nothing in this section shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

Company may enter into contracts for supply of gas.

35. The Company may enter into any contract with any local authority company or person for a supply of gas for different purposes to any premises within the limits of supply and such supply may be given for such purposes and subject to such terms and conditions as to price varying according to the purposes for which the gas is to be supplied and otherwise as may be agreed upon between the Company and the person taking such supply Provided that the Company shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for similar purposes from the Company under similar conditions and circumstances.

Power to make superannuation and other allowances.

36. It shall be lawful for the Company to make superannuation and other allowances and to pay pensions to any officers servants or employees of the Company who may be temporarily or permanently disabled by sickness infirmity or age and for that purpose to apply the funds and revenues of the Company.

Power to lay pipes &c. for ancillary purposes.

37. The Company may within the limits of supply lay down and repair take up relay or renew mains pipes and culverts for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the

purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. A.D. 1916.

38.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply. Charge for gas supplied by means of prepayment meters.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connexion therewith.

(5) For the purpose of this section the expression “prepayment meter” means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

39. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:— As to construction and placing of pipes &c. between mains and meters.

(1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company’s mains and the meter so far as such pipes and fittings are intended to be covered over :

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- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to
lay pipes in
private
streets.

40. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting

on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in the recited Acts and this Act:

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Provided that the mains pipes and other apparatus which may be laid by the Company in any such street shall be laid at such depth and in such position as may be reasonably required by the urban district council of Aberdare but the said council shall not require that any such mains pipes and apparatus shall be so laid that more than two feet six inches shall intervene between the surface of such street and the upper surface of such mains pipes or other apparatus.

41. For the protection of the Aberdare Urban District Council (in this section referred to as "the council") the following provisions shall unless otherwise agreed in writing between the Company and the council have effect within the urban district of Aberdare (that is to say):—

For protection of Aberdare Urban District Council.

- (1) Whenever it shall be found necessary by the Company to break up streets not dedicated to public use in which is laid any sewer drain or tunnel vested in the council the like notice and plan as are respectively required by sections 8 and 9 of the Gasworks Clauses Act 1847 to be given or sent to the persons having the control or management of any street shall be given and sent to the council and if the council notify in writing to the Company that any such sewer drain or tunnel will or may be affected by the operations proposed to be carried out by the Company in such street the provisions of the said Act shall apply for the protection of such sewer drain or tunnel and of the council in reference thereto as though the council were a person having the control and management of such street within the meaning of the said Act :
- (2) The Company and the council may enter into and carry into effect agreements for and with respect to the reinstatement and making good by the council of any street or bridge opened or broken up by the Company and for the repayment to the council by the Company of any expenses properly incurred by the council with respect to the reinstatement and making good of such street or bridge :

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- (3) All works shall be executed by the Company so as not (so far as reasonably practicable) to stop impede or interfere with the traffic on any street or bridge vested in or under the jurisdiction of the council or on the approaches to any such bridge and the Company shall not without the consent of the council or their surveyor (which consent shall not be unreasonably withheld) break up at any one time a greater continuous length than one hundred yards of any street :
- (4) Where any mains or pipes of the Company (other than service pipes) are to be laid or relaid beneath the surface of the roadway of any street or bridge vested in or under the jurisdiction of the council the same shall be laid or relaid wherever practicable at such a depth that not less than two feet six inches shall intervene between the surface of such roadway and the upper surface of such mains or pipes :
- (5) If any difference shall arise between the council and the Company touching the provisions of this section such difference shall be settled by an arbitrator to be agreed upon between the council and the Company or failing agreement to be appointed on the application of either party after notice to the other by the President of the Institution of Civil Engineers and subject as aforesaid the Arbitration Act 1889 or any statutory modification thereof shall apply to the arbitration.

Dwelling-houses for employees &c.

42. The Company may purchase by agreement or take on lease houses cottages and other buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect fit up maintain and let any such buildings upon any lands for the time being belonging or leased to the Company.

Company may refuse to supply gas in certain cases.

43. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Gas consumers to give notice to Company

44. At least twenty-four hours' notice shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises

supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

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before
removing.

45. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his using or keeping in repair such anti-fluctuator and valve the Company may cease to supply him with gas The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of the consumer.

Power to
require use
of anti-
fluctuators
for gas
engines.

46. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Power to
enter pre-
mises and
remove
fittings.

47. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Period of
error in
defective
meters.

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Notice to
discontinue
supply of
gas.

48. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company.

Company
may contract
with local
authorities
&c. for
supply in
bulk.

49. The Company may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or other pipes or to interfere with any street beyond the limits of supply.

Power to
subscribe to
hospitals &c.

50. The directors of the Company may subscribe or make donations to infirmaries and hospitals and to convalescent homes and to other institutions and objects or to any exhibition and to the benevolent and sick funds of the employees of the Company and may for that purpose apply the funds and revenues of the Company.

Power for
directors to
determine
remuneration
of secretary.

51. In addition to the powers which the directors of the Company may exercise under the Companies Clauses Acts 1845 to 1889 or otherwise they may from time to time determine the remuneration of the secretary of the Company.

Company to
pay interest
on money
deposited as
security for
gas.

52. Section 34 of the Act of 1874 is hereby repealed and in lieu thereof the following provision shall apply:—

If any person is required by the Company to give to them security in respect of any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Occupier to
pay expenses
of recon-
necting dis-
connected
supply.

53. In any case in which in consequence of any default on the part of the occupier of any premises the Company shall have cut off the supply of gas to such premises (whether under the existing powers of the Company or under the powers conferred by this Act) and the occupier so in default shall

desire to resume such supply he shall pay to the Company the expenses of reconnecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses. A.D. 1916.

54. Proceedings for the recovery of any demand made under the authority of this Act or the recited Acts or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

55. In executing the work authorised by the section of this Act whereof the marginal note is "Power to lay pipes &c. for ancillary purposes" the following provisions for the protection of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") shall (except so far as it may be otherwise agreed between the Great Western Company and the Company) apply (that is to say):— For protection of Great Western Railway Company.

(1) In laying down altering or in executing or effecting the repairs or renewals of any mains pipes or other works of the Company upon across over under or in any way affecting the railways and other property now or hereafter belonging to used or occupied by the Great Western Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to such plans sections and particulars and in such manner and at such time or times as shall be submitted to and as shall be previously reasonably approved by him in writing Provided that if the said engineer shall not signify his approval or disapproval of such plans sections and particulars within fourteen days after they shall have been submitted to him he shall be deemed to have approved thereof and if the said engineer shall refuse or neglect to superintend any operation after receiving seven days' notice in writing from the Company the Company may execute the work without his superintendence :

(2) All such works shall be done by and at the expense of the Company except as in this section otherwise provided who shall also restore and make good to

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—

the reasonable satisfaction of the said engineer the roads over any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided that should the Great Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway or over any bridge they may themselves lay the same at the cost charges and expenses of the Company :

- (3) All such works and operations and all matters incidental thereto shall be constructed executed and maintained so as to cause as little injury as may be to such railways works or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon and if any such injury or interruption shall arise from or in any way be owing to any of the acts operations or matters aforesaid or the bursting leakage or failure of any main pipe or works of the Company in under or near to any railways works or property of the Great Western Company the Company shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :
- (4) If the Great Western Company at any time or times hereafter require under their existing powers of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the Great Western Company may after giving to the Company fourteen days' notice in writing under the hand of their secretary or general manager or in case of emergency of which the said engineer shall be the sole judge after giving as long a notice as possible divert support or carry the said works of the Company across over or

under their railways works or other property at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works : A.D. 1916.

- (5) Any additional expense which the Great Western Company may reasonably and properly incur in widening altering reconstructing repairing or maintaining their railways bridges or works by reason of the existence of the mains or pipes of the Company across or under the same shall be paid by the Company :
- (6) The Company shall not without the previous consent in writing of the Great Western Company exercise the powers of the section of this Act of which the marginal note is "Power to lay pipes in private streets" with respect to any street laid out but not dedicated to public use which is the property of the Great Western Company :
- (7) Nothing in this section contained shall prejudice alter or affect the rights of the Great Western Company or the Company under any agreement between them relating to the mains pipes or other works of the Company and where the provisions of such agreement are inconsistent with the provisions of this section the provisions of the said agreement shall apply :
- (8) Any difference arising between the Great Western Company and the Company respecting any of the matters referred to in this section shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Company or either of them and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

56. Notwithstanding anything contained in section 46 of the Act of 1869 the price to be charged by the Company for gas supplied to the Aberdare Urban District Council—

As to supply of gas to Aberdare Urban District Council.

- (a) For purposes of public lighting shall be not less than eight per cent. below the net price charged to

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—

ordinary consumers for lighting purposes and two per cent. below the net price charged to any other consumer for lighting purposes; and

(b) For power purposes shall not exceed the lowest price for the time being charged by the Company to any consumer for power purposes.

Saving as
to general
Acts.

57. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Costs of
Act.

58. All the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

DESCRIPTION OF GAS LANDS.

All that piece or parcel of land (comprising in part a portion of the bed of the River Aman) being part of the Aberaman Ucha farm belonging or reputed to belong to the Powell Duffryn Steam Coal Company Limited (hereinafter referred to as "the Steam Coal Company") situate in the parish of Aberdare in the county of Glamorgan containing in the whole by admeasurement two acres and two roods or thereabouts bounded on the north side thereof by lands works and properties of the Company and on the south east and west sides thereof by other lands of the Steam Coal Company which said piece or parcel of land is now in the occupation and use of the Company.

Printed by EYRE and SPOTTISWOODE, LIMITED,
FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

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